



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1445: water quality; testing; on-site

BLISS FLOOR AMENDMENT

1. Prohibits ADEQ from requiring the minimum storage capacity for a community water system to be greater than 1,000 gallons if serving 25 or fewer connections and in a county with a population less than 400,000 persons.
2. Makes technical and conforming changes.
3. Contains the language of the NREW Committee amendment.

BLISS SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1445

I move the following SUBSTITUTE amendment to the NATURAL RESOURCES, ENERGY & WATER Committee Amendment to SENATE BILL 1445 (Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 45-341, Arizona Revised Statutes, is amended
3 to read:

4 45-341. Definitions

5 In this article, unless the context otherwise requires:

6 1. "Community water system" means a public water system that serves
7 at least fifteen service connections used by year-round residents of the
8 area served by the system or that regularly serves at least twenty-five
9 year-round residents of the area served by the system. A person is a
10 year-round resident of the area served by a system if the person's primary
11 residence is served water by that system.

12 2. "Large community water system" means a community water system
13 that serves water to more than one thousand eight hundred fifty persons.

14 3. "Public water system" means an entity that distributes or sells
15 water and that qualifies as a public water system under section 49-352[
16 subsection B].

17 4. "Small community water system" means a community water system
18 that does not qualify as a large community water system. >>

19 Sec. 2. Section 49-241, Arizona Revised Statutes, is amended to
20 read:

21 49-241. Permit required to discharge

22 A. Unless otherwise provided by this article, any person who
23 discharges or who owns or operates a facility that discharges shall obtain
24 an aquifer protection permit from the director.

25 B. Unless exempted under section 49-250, or unless the director
26 determines that the facility will be designed, constructed and operated so
27 that there will be no migration of pollutants directly to the aquifer or

1 to the vadose zone, the following are considered to be discharging
2 facilities and shall be operated pursuant to either an individual permit
3 or a general permit, including agricultural general permits, under this
4 article:

5 1. Surface impoundments, including holding, storage settling,
6 treatment or disposal pits, ponds and lagoons.

7 2. Solid waste disposal facilities except for mining overburden and
8 wall rock that has not been and will not be subject to mine leaching
9 operations.

10 3. Injection wells.

11 4. Land treatment facilities.

12 5. Facilities that add a pollutant to a salt dome formation, salt
13 bed formation, dry well or underground cave or mine.

14 6. Mine tailings piles and ponds.

15 7. Mine leaching operations.

16 8. Underground water storage facilities.

17 9. Sewage treatment facilities, including on-site wastewater
18 treatment facilities.

19 10. Wetlands designed and constructed to treat municipal and
20 domestic wastewater for underground storage.

21 C. The director shall provide public notice and an opportunity for
22 public comment on any request for a determination from the director under
23 subsection B of this section that there will be no migration of pollutants
24 from a facility. A public hearing may be held at the discretion of the
25 director if sufficient public comment warrants a hearing. The director
26 may inspect and may require reasonable conditions and appropriate
27 monitoring and reporting requirements for a facility managing pollutants
28 that are determined not to migrate under subsection B of this section.
29 The director may identify types of facilities, available technologies and
30 technical criteria for facilities that will qualify for a
31 determination. The director's determination may be revoked on evidence
32 that pollutants have migrated from the facility. The director may impose
33 a review fee for a determination under subsection B of this section. Any
34 issuance, denial or revocation of a determination may be appealed pursuant
35 to section 49-323.

36 D. The director shall annually make the fee schedule for aquifer
37 protection permit applications available to the public on request and on
38 the department's website, and a list of the names and locations of the
39 facilities that have filed applications for aquifer protection permits,
40 with a description of the status of each application, is available to the
41 public on request.

42 E. The director shall prescribe the procedures for aquifer
43 protection permit applications and fee collection under this section. The
44 director shall deposit, pursuant to sections 35-146 and 35-147, all monies
45 collected under this section in the water quality fee fund established by
46 section 49-210 and may authorize expenditures from the fund, subject to

1 legislative appropriation, to pay reasonable and necessary costs of
2 processing and issuing permits and administering the registration program.

3 F. FOR AQUIFER PROTECTION PERMITS ISSUED TO A CITY OR A TOWN [WITH
4 ~~A POPULATION OF ONE THOUSAND PERSONS OR MORE BUT LESS THAN TEN THOUSAND~~
5 ~~PERSONS, THE DIRECTOR MAY REQUIRE BACTERIOLOGICAL SAMPLING NOT MORE~~
6 ~~FREQUENTLY THAN FOUR TIMES PER MONTH. A CITY OR TOWN]~~ WITH A POPULATION
7 OF ONE THOUSAND PERSONS OR MORE BUT LESS THAN TEN THOUSAND PERSONS[, THE
8 CITY OR TOWN] MAY TEST BACTERIOLOGICAL SAMPLES ON-SITE WITH TESTING
9 EQUIPMENT THAT IS APPROVED BY THE UNITED STATES ENVIRONMENTAL PROTECTION
10 AGENCY.

11 Sec. 3. Section 49-255.01, Arizona Revised Statutes, is amended to
12 read:

13 49-255.01. Arizona pollutant discharge elimination system
14 program; rules and standards; affirmative
15 defense; fees; general permit

16 A. A person shall not discharge except under either of the
17 following conditions:

18 1. In conformance with a permit that is issued or authorized under
19 this article or rules authorized under section 49-203, subsection A,
20 paragraph 2.

21 2. Pursuant to a permit that is issued or authorized by the United
22 States environmental protection agency until a permit that is issued or
23 authorized under this article takes effect.

24 B. The director shall adopt rules to establish an AZPDES permit
25 program for discharges to WOTUS consistent with the requirements of
26 sections 402(b) and 402(p) of the clean water act. This program shall
27 include requirements to ensure compliance with section 307 and
28 requirements for the control of discharges consistent with sections 318
29 and 405(a) of the clean water act. The director shall not adopt any
30 requirement for WOTUS that is more stringent than any requirement of the
31 clean water act. The director shall not adopt any requirement that
32 conflicts with any requirement of the clean water act. The director may
33 adopt federal rules pursuant to section 41-1028 or may adopt rules to
34 reflect local environmental conditions to the extent that the rules are
35 consistent with and not more stringent than the clean water act and this
36 article.

37 C. The rules adopted by the director under subsection B of this
38 section shall provide for:

39 1. Issuing, authorizing, denying, modifying, suspending or revoking
40 individual or general permits.

41 2. Establishing permit conditions, discharge limitations and
42 standards of performance as prescribed by section 49-203, subsection A,
43 paragraph 8, including case-by-case effluent limitations that are
44 developed in a manner consistent with 40 Code of Federal Regulations
45 section 125.3(c).

46 3. Modifications and variances as allowed by the clean water act.

1 4. Other provisions necessary for maintaining state program
2 authority under section 402(b) of the clean water act.

3 5. FOR A CITY OR TOWN WITH A POPULATION OF ONE THOUSAND PERSONS OR
4 MORE BUT LESS THAN TEN THOUSAND PERSONS, USING ON-SITE TESTING EQUIPMENT
5 THAT IS APPROVED BY THE UNITED STATES ENVIRONMENTAL PROTECTION AGENCY TO
6 DETECT BACTERIOLOGICAL MATERIAL.

7 D. This article does not affect the validity of any existing rules
8 that are adopted by the director and that are equivalent to and consistent
9 with the national pollutant discharge elimination system program
10 authorized under section 402 of the clean water act until new rules for
11 AZPDES discharges are adopted pursuant to this article.

12 E. An upset constitutes an affirmative defense to any
13 administrative, civil or criminal enforcement action brought for
14 noncompliance with technology-based permit discharge limitations if the
15 permittee complies with all of the following:

16 1. The permittee demonstrates through properly signed
17 contemporaneous operating logs or other relevant evidence that:

18 (a) An upset occurred and that the permittee can identify the
19 specific cause of the upset.

20 (b) The permitted facility was being properly operated at the time
21 of the upset.

22 (c) If the upset causes the discharge to exceed any discharge
23 limitation in the permit, the permittee submitted notice to the department
24 within twenty-four hours after the upset.

25 (d) The permittee has taken appropriate remedial measures including
26 all reasonable steps to minimize or prevent any discharge or sewage sludge
27 use or disposal that is in violation of the permit and that has a
28 reasonable likelihood of adversely affecting human health or the
29 environment.

30 2. In any administrative, civil or criminal enforcement action, the
31 permittee shall prove, by a preponderance of the evidence, the occurrence
32 of an upset condition.

33 F. Compliance with a permit issued pursuant to this article shall
34 be deemed compliance with both of the following:

35 1. All requirements in this article or rules adopted pursuant to
36 this article relating to state implementation of sections 301, 302, 306
37 and 307 of the clean water act, except for any standard that is imposed
38 under section 307 of the clean water act for a toxic pollutant that is
39 injurious to human health.

40 2. Limitations for pollutants in WOTUS adopted pursuant to sections
41 49-221 and 49-222, if the discharge of the pollutant is specifically
42 limited in a permit issued pursuant to this article or the pollutant was
43 specifically identified as present or potentially present in facility
44 discharges during the application process for the permit.

45 G. Notwithstanding section 49-203, subsection D, permits that are
46 issued under this article shall not be combined with permits issued under
47 article 3 of this chapter.

1 H. The decision of the director to issue or modify a permit takes
2 effect on issuance if there were no changes requested in comments that
3 were submitted on the draft permit unless a later effective date is
4 specified in the decision. In all other cases, the decision of the
5 director to issue, deny, modify, suspend or revoke a permit takes effect
6 thirty days after the decision is served on the permit applicant, unless
7 either of the following applies:

8 1. Within the thirty-day period, an appeal is filed with the water
9 quality appeals board pursuant to section 49-323.

10 2. A later effective date is specified in the decision.

11 I. In addition to other reservations of rights provided by this
12 chapter, this article does not impair or affect rights or the exercise of
13 rights to water claimed, recognized, permitted, certificated, adjudicated
14 or decreed pursuant to state or other law.

15 J. The director shall establish by rule fees, including maximum
16 fees, to pay expenses incurred in implementing the AZPDES PERMIT
17 program. Monies collected pursuant to this section shall be deposited,
18 pursuant to sections 35-146 and 35-147, in the water quality fee fund
19 established by section 49-210.

20 K. Any permit conditions concerning threatened or endangered
21 species shall be limited to those required by the endangered species act.

22 L. When developing a general permit for discharges of storm water
23 from construction activity, the director shall provide for reduced control
24 measures at sites that retain storm water in a manner that eliminates
25 discharges from the site, except for the occurrence of an extreme event.
26 Reduced control measures shall be available if all of the following
27 conditions are met:

28 1. The nearest downstream receiving water is ephemeral and the
29 construction site is a sufficient distance from a water warranting
30 additional protection as described in the general permit.

31 2. The construction activity occurs on a site designed so that all
32 storm water generated by disturbed areas of the site exclusive of public
33 rights-of-way is directed to one or more retention basins that are
34 designed to retain the runoff from an extreme event. For the purposes of
35 this subsection, "extreme event" means a rainfall event that meets or
36 exceeds the local one hundred-year, two-hour storm event as calculated by
37 an Arizona registered professional engineer using industry practices.

38 3. The owner or operator complies with good housekeeping measures
39 included in the general permit.

40 4. The owner or operator maintains the capacity of the retention
41 basins.

42 5. Construction conforms to the standards prescribed by this
43 section.

44 M. If the director commences proceedings for the renewal of a
45 general permit issued pursuant to this article, the existing general
46 permit shall not expire and coverage may continue to be obtained by new
47 dischargers until the proceedings have resulted in a final determination

1 by the director. If the proceedings result in a decision not to renew the
2 general permit, the existing general permit shall continue in effect until
3 the last day for filing for review of the decision of the director not to
4 renew the permit or until any later date that is fixed by court order.

5 <<Sec. 4. Section 49-352, Arizona Revised Statutes, is amended to
6 read:

7 49-352. Classifying systems and certifying personnel;
8 limitation

9 A. The department shall establish and enforce rules for ~~[the~~
10 ~~classification of]~~ [CLASSIFYING] systems for potable water and certifying
11 operating personnel according to the skill, knowledge and experience
12 necessary within the classification. The rules shall also provide that
13 operating personnel may be certified on the basis of training and
14 supervision at the place of employment. The department may assess and
15 collect reasonable certification fees to reimburse the cost of
16 certification services, which shall be deposited in the water quality fee
17 fund established by section 49-210. Such rules apply to all public water
18 systems involved in the collection, storage, treatment or distribution of
19 potable water. The rules do not apply to systems that are not public
20 water systems, including irrigation, industrial or similar systems where
21 the water is used for nonpotable purposes.

22 [B. NOTWITHSTANDING ANY OTHER LAW, THE DEPARTMENT MAY NOT REQUIRE A
23 COMMUNITY WATER SYSTEM THAT IS LOCATED IN A COUNTY WITH A POPULATION OF
24 FOUR HUNDRED THOUSAND PERSONS OR LESS AND THAT SERVES TWENTY-FIVE OR FEWER
25 SERVICE CONNECTIONS TO MAINTAIN A MINIMUM STORAGE CAPACITY THAT IS LARGER
26 THAN ONE THOUSAND GALLONS.]

27 ~~[B.]~~ [C.] For the purposes of this article:

28 1. A public water system is a water system that:

29 (a) Provides water for human consumption through pipes or other
30 constructed conveyances.

31 (b) Has at least fifteen service connections or regularly serves an
32 average of at least twenty-five persons daily for at least sixty days a
33 year.

34 2. A public water system as described in paragraph 1, subdivisions
35 (a) and (b) of this subsection includes any collection, treatment, storage
36 and distribution facilities that are under the control of the operator of
37 a public water system and that are used primarily in connection with the
38 system and any collection or pretreatment storage facilities that are not
39 under the control of the operator of a public water system and that are
40 used primarily in connection with a public water system.

41 3. A service connection does not include a connection to a system
42 that delivers water by a constructed conveyance other than a pipe, if any
43 of the following applies:

44 (a) The water is used exclusively for purposes other than
45 residential uses consisting of drinking, cooking or bathing or other
46 similar uses.

1 (b) The department determines that alternative water is provided
2 for residential or similar uses for drinking and cooking and that the
3 water achieves a level of public health protection that is equivalent to
4 the applicable national primary drinking water regulations.

5 (c) The department determines that the water that is provided for
6 residential or similar uses for drinking, cooking and bathing is centrally
7 treated or is treated at the point of entry by the water provider, a
8 pass-through entity or the user to achieve the level of public health
9 protection that is equivalent to the applicable national primary drinking
10 water regulations.

11 4. An irrigation district in existence before May 18, 1994 and that
12 provides primarily agricultural service through a piped water system with
13 only incidental residential or similar use is not a public water system if
14 the system or the residential or other similar users of the system comply
15 with paragraph 3, subdivision (b) or (c) of this subsection.

16 5. Persons who receive water through connections that are not
17 service connections pursuant to paragraph 3 of this subsection are not
18 included in the computation of the number of persons prescribed by
19 paragraph 1, subdivision (b) of this subsection.>>

20 <<Sec. 5. Section 49-353, Arizona Revised Statutes, is amended to
21 read:

22 49-353. Duties of director; rules; prohibited lead use

23 A. The director shall:

24 1. Exercise general supervision over all matters related to water
25 quality control of public water systems throughout this state.

26 2. Prescribe rules regarding the production, treatment,
27 distribution and testing of potable water by public water systems, except
28 that such rules shall not apply to irrigation, industrial or similar
29 systems where the water is used for nonpotable purposes. The rules shall
30 comply with at least the following:

31 (a) The requirements established by the United States environmental
32 protection agency for state primary enforcement responsibility of the safe
33 drinking water act, including the requirements of 40 Code of Federal
34 Regulations parts 141 and 142.

35 (b) Require that the plans and specifications for all public water
36 systems, including water treatment plants, distribution systems,
37 distribution system extensions, water treatment methods and devices and
38 all appurtenances and devices for sale to be used in water supplies and
39 public water systems be submitted with a fee for review to the
40 department. The department, in establishing fees authorized by this
41 section, shall comply with title 41, chapter 6. The department shall not
42 set a fee at more than the department's cost of providing the service for
43 which the fee is charged. State agencies are exempt from all fees imposed
44 pursuant to this section. Monies collected from the fees shall be
45 deposited in the water quality fee fund established by section 49-210.
46 The director may require that plans and specifications for public water
47 systems include programs to meet future needs for drinking water and to

1 supply specified minimum quantities of drinking water. The director
2 shall:

3 (i) Require that a new public water system demonstrate that the
4 system possesses adequate managerial and financial capacity to operate in
5 compliance with this article and the rules adopted pursuant to this
6 article.

7 (ii) Accept adequate findings of other public authorities regarding
8 the adequate managerial and financial capacity of a public water system to
9 operate in compliance with this article and the rules adopted pursuant to
10 this article.

11 (c) Provide that no public water system, including a water
12 treatment plant, distribution system, distribution system extension, water
13 treatment method or device, appurtenance and device used in water supplies
14 or public water systems be constructed, reconstructed, installed or
15 initiated before compliance with the standards and rules has been
16 demonstrated by approval of the plans and specifications by the
17 department. The rules shall prescribe minimum standards for the
18 bacteriological, physical and chemical quality of water distributed
19 through public water systems. The director of environmental quality may
20 consult with the director of the department of health services in
21 developing these standards.

22 (d) Provide for a simplified administrative procedure for approving
23 structural revisions, additions, extensions or modifications to existing
24 small public water systems for potable water serving a population of three
25 thousand three hundred or fewer persons.

26 (e) Exempt from the plan review requirements of this paragraph,
27 including any requirements for approval to construct or approval of
28 construction, any structural revisions, additions, extensions or
29 modifications to public water systems which are in compliance with the
30 department's rules applicable to those systems or which are making
31 satisfactory progress towards compliance under a schedule approved by the
32 department if either of the following conditions is satisfied:

33 (i) The revision, addition, extension or modification has a project
34 cost of ~~[twelve thousand five hundred dollars]~~ [\$12,500] or less.

35 (ii) The revision, addition, extension or modification is made to a
36 water line ~~[which]~~ [THAT] is not for a subdivision requiring plat approval
37 by a city, town or county, and has a project cost of more than ~~[twelve~~
38 ~~thousand five hundred dollars]~~ [\$12,500] but less than ~~[fifty thousand~~
39 ~~dollars]~~ [\$50,000], the design of which is sealed by a professional
40 engineer registered in this state and the construction of which is
41 reviewed for conformance with the design by a professional engineer.

42 (f) Require a notice of compliance with the conditions for
43 exemption on the completion of any revisions, additions, extensions or
44 modifications completed in accordance with subdivision (e) of this
45 paragraph.

46 (g) Provide for the submission of samples at stated intervals.

1 (h) Provide for inspection and certification of such water
2 supplies.

3 (i) Provide for the abatement as public nuisances of any premises,
4 equipment, process or device, or public water system that does not comply
5 with the minimum standards and rules.

6 (j) Provide for records regarding water quality to be kept by
7 owners and operators of the public water systems and that reports
8 regarding water quality be filed with the department.

9 (k) Provide for appropriate actions to be taken if a water supply
10 does not meet the standards established by the department.

11 (l) Require a public water system to implement a specified program
12 to control contamination from backflow, backsiphonage or cross connection.
13 All such programs shall be consistent with section 37-1388.

14 (m) Require that public water systems identify and provide notice
15 to persons that may be affected by lead contamination of their drinking
16 water where such contamination results from either or both of the
17 following:

18 (i) The lead content in the construction materials of the public
19 water distribution system.

20 (ii) Corrosivity of the water supply sufficient to cause leaching
21 of lead.

22 (n) Provide for relief from water testing and monitoring
23 requirements for public water systems qualifying under the federal safe
24 drinking water act (P.L. 93-523; 88 Stat. ~~[1661]~~ [1660]; P.L. 95-190; 91
25 Stat. 1393; P.L. 104-182; 110 Stat. 1613), as amended in 1996.

26 3. Develop and implement strategies to assist public water systems
27 in acquiring and maintaining the technical, managerial and financial
28 capacity to operate in compliance with this article and the rules adopted
29 pursuant to this article. Assistance may be provided based on the needs
30 of the water system.

31 B. Pipes, pipe fittings and plumbing fittings and fixtures having a
32 lead content in excess of a weighted average of one-quarter of one percent
33 lead when used with respect to the wetted surfaces and solders and flux
34 having a lead content in excess of two-tenths of one percent shall not be
35 used in the installation or repair of public water systems or of any
36 plumbing in residential or nonresidential facilities providing water for
37 human consumption. The weighted average lead content of a pipe, pipe
38 fitting or plumbing fitting or fixture shall be calculated as follows:

39 1. For each wetted component, the percentage of lead in the
40 component shall be multiplied by the ratio of the wetted surface area of
41 that component to the total wetted surface area of the entire product to
42 arrive at the weighted percentage of lead of the component.

43 2. The weighted percentage of lead of each wetted component shall
44 be added together, and the sum of these weighted percentages shall
45 constitute the weighted average lead content of the product.

46 3. The lead content of the material used to produce a wetted
47 component shall be used to determine compliance with this subsection.

1 4. For lead content of materials that are provided as a range, the
2 maximum content of that range shall be used.

3 C. Subsection B of this section does not apply to:

4 1. Lead joints necessary for the repair of cast iron pipes.

5 2. Pipes, pipe fittings and plumbing fittings and fixtures,
6 including backflow preventers, that are used exclusively for nonpotable
7 water services such as manufacturing, industrial processing, irrigation,
8 outdoor watering or any other uses where the water is not anticipated to
9 be used for human consumption.

10 3. Toilets, bidets, urinals, fill valves, flushometer valves, tub
11 fillers, shower valves or service saddles or water distribution main gate
12 valves that are two inches in diameter or larger.

13 D. Notwithstanding subsection A, paragraph 2, subdivision (c) of
14 this section, a public water system may construct, reconstruct, install,
15 extend or initiate a water supply system, water treatment plant,
16 distribution system, water treatment method or device, or appurtenance
17 that is used in water supply or in a public water system when the system
18 is out of compliance with standards and rules adopted pursuant to this
19 article only if the construction is necessary to correct the system's
20 noncompliance.

21 E. This section and the rules adopted pursuant to this section
22 apply to public water systems as described by section 49-352[
23 ~~subsection B~~].>>

24 Enroll and engross to conform

25 Amend title to conform

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